



International Organisations Act 1981

1981 CHAPTER 9

An Act to make further provision as to the privileges and immunities to be accorded in respect of certain international organisations and in respect of persons connected with such organisations and other persons; and for purposes connected therewith. [15th April 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of
1968 Act to
Common-
wealth
organisations,
etc.

1968 c. 48.

1.—(1) In section 1 of the 1968 Act (privileges and immunities for international organisations of which the United Kingdom and foreign sovereign Powers are members)—

(a) in subsection (1), the following paragraph is substituted for paragraph (b)—

“(b) any other sovereign Power or the Government of any other sovereign Power,”; and

(b) in subsection (6), for the words “one or more other foreign sovereign Powers or Governments” there are substituted the words “any other sovereign Power or Government”.

(2) In section 4 of that Act (other organisations of which the United Kingdom is not a member) the word “foreign”, in the first place where it occurs, shall cease to have effect.

(3) In section 6 of that Act (international conferences attended by representatives of the United Kingdom and foreign sovereign Powers)—

(a) in subsection (1), the following paragraph is substituted for paragraph (b)—

“(b) of any other sovereign Power or the Government of any other sovereign Power.”; and

(b) in subsection (2) for the words “a foreign sovereign Power” there are substituted the words “a sovereign Power (other than the United Kingdom)”.

2. The following section is hereby inserted in the 1968 Act after section 4—

“Inter-national commodity organisations.

4A.—(1) In this section, “international commodity organisation” means any such organisation as is mentioned in section 4 of this Act (international organisations of which the United Kingdom is not a member) which appears to Her Majesty to satisfy each of the following conditions—

- (a) that the members of the organisation are States or the Governments of States in which a particular commodity is produced or consumed;
- (b) that the exports or imports of that commodity from or to those States account (when taken together) for a significant volume of the total exports or imports of that commodity throughout the world; and
- (c) that the purpose or principal purpose of the organisation is—
 - (i) to regulate trade in that commodity (whether as an import or an export or both) or to promote or study that trade; or
 - (ii) to promote research into that commodity or its uses or further development.

(2) Subject to the following provisions of this section, an Order made under section 4 of this Act

Extension of 1968 Act to commodity organisations.

with respect to an international commodity organisation may, for the purpose there mentioned and to such extent as may be specified in the Order—

- (a) provide that the organisation shall have the privileges and immunities set out in paragraphs 2, 3, 4, 6 and 7 of Schedule 1 to this Act;
 - (b) confer on persons of any such class as is mentioned in subsection (3) of this section the privileges and immunities set out in paragraphs 11 and 14 of that Schedule;
 - (c) provide that the official papers of such persons shall be inviolable; and
 - (d) confer on officers and servants of the organisation of any such class as may be specified in the Order the privileges and immunities set out in paragraphs 13, 15 and 16 of that Schedule.
- (3) The classes of persons referred to in subsection (2)(b) of this section are—
- (a) persons who (whether they represent Governments or not) are representatives to the organisation or representatives on, or members of, any organ, committee or other subordinate body of the organisation (including any sub-committee or other subordinate body of a subordinate body of the organisation);
 - (b) persons who are members of the staff of any such representative and who are recognised by Her Majesty's Government in the United Kingdom as holding a rank equivalent to that of a diplomatic agent.
- (4) An Order in Council made under section 4 of this Act shall not confer on any person of such class as is mentioned in subsection (3) of this section any immunity in respect of a civil action arising out of an accident caused by a motor vehicle or other means of transport belonging to or driven by such a person, or in respect of a traffic offence involving such a vehicle and committed by such a person.

(5) In this section “commodity” means any produce of agriculture, forestry or fisheries, or any mineral, either in its natural state or having undergone only such processes as are necessary or customary

to prepare the produce or mineral for the international market.”.

3. The following section is hereby inserted in the 1968 Act after section 5—

“ Orders under ss. 1 and 4 extending to U.K. conferences.

Conferences convened by international organisations.

5A.—(1) An Order in Council made under section 1 of this Act in respect of any organisation, or under section 4 of this Act in respect of an international commodity organisation, may to such extent as may be specified in the Order, and subject to the following provisions of this section,—

(a) confer on persons of any such class as may be specified in the Order, being persons who are or are to be representatives (whether of Governments or not) at any conference which the organisation may convene in the United Kingdom—

(i) in the case of an Order under section 1, the privileges and immunities set out in Part II of Schedule 1 to this Act;

(ii) in the case of an Order under section 4, the privileges and immunities set out in paragraphs 11 and 14 of that Schedule; and

(b) in the case of an Order under section 4, provide that the official papers of such persons shall be inviolable.

(2) Where in the exercise of the power conferred by subsection (1)(a) of this section an Order confers privileges and immunities on persons of any such class as is mentioned in that paragraph, the provisions of paragraphs 19 to 22 of Schedule 1 to this Act shall have effect in relation to the members of the official staffs of such persons as if in paragraph 19 of that Schedule “representative” were defined as a person of such a class.

(3) The powers exercisable by virtue of this section may be exercised notwithstanding the provisions of any such agreement as is mentioned in section 1(6)(a) or 4 of this Act, but no privilege or immunity may thereby be conferred on any such representative, or member of his staff, as is mentioned in section 1(6)(b) of this Act.

(4) In this section “international commodity organisation” has the meaning given by section 4A(1) of this Act.

(5) This section is without prejudice to section 6 of this Act.”.

Immunities
for U.K.
representatives
to certain
Assemblies.

4. Notwithstanding section 1(6)(b) of the 1968 Act (Orders under section 1 not to confer privileges or immunities on representatives of the United Kingdom, etc.), an Order in Council made under section 1 of that Act may confer immunities on representatives of the United Kingdom to the Assembly of Western European Union or to the Consultative Assembly of the Council of Europe.

Amendment of
Schedule 1
to 1968 Act.

5.—(1) After paragraph 9 of Schedule 1 to the 1968 Act there is inserted the following paragraph—

“9A. The like inviolability of official premises as is accorded in respect of the premises of a diplomatic mission.”.

(2) In paragraph 10 of that Schedule (exemption from customs duties and taxes for representatives to organisations) after the words “for his establishment” there are inserted the words “and the like privilege as to the importation of such articles”.

(3) In paragraph 16 of that Schedule (exemption from customs duties and taxes for officers, etc. of organisations) before the words “as in accordance with” there are inserted the words “and the like privilege as to the importation of such articles”.

Citation,
interpretation,
extent and
repeals.
1968 c. 48.

6.—(1) This Act may be cited as the International Organisations Act 1981; and this Act and the 1968 Act may be cited together as the International Organisations Acts 1968 and 1981.

(2) In this Act “the 1968 Act” means the International Organisations Act 1968.

(3) It is hereby declared that this Act extends to Northern Ireland.

(4) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE

Section 6.

REPEALS

Chapter or number	Short title	Extent of repeal
1961 c. 1.	Tanganyika Independence Act 1961.	In Schedule 2, paragraph 3.
1961 c. 11.	Diplomatic Immunities (Conferences with Commonwealth Countries & Republic of Ireland) Act 1961.	The whole Act.
1961 c. 16.	Sierra Leone Independence Act 1961.	In Schedule 3, paragraph 3.
S.I. 1961/1508.	Diplomatic Immunities (Conferences) (Cyprus) Order 1961.	The whole Order.
1962 c. 40.	Jamaica Independence Act 1962.	In Schedule 2, paragraph 3.
1962 c. 54.	Trinidad and Tobago Independence Act 1962.	In Schedule 2, paragraph 3.
1962 c. 57.	Uganda Independence Act 1962.	In Schedule 3, paragraph 3.
1963 c. 35.	Malaysia Act 1963.	In Schedule 2, paragraph 1(e).
1963 c. 54.	Kenya Independence Act 1963.	In Schedule 2, paragraph 3.
1963 c. 55.	Zanzibar Act 1963.	In Schedule 1, paragraph 3.
S.I. 1963/2085.	Federation of Rhodesia and Nyasaland (Dissolution) Order in Council 1963.	In Schedule 3, paragraph 11.
1964 c. 46.	Malawi Independence Act 1964.	In Schedule 2, paragraph 3.
1964 c. 65.	Zambia Independence Act 1964.	In Schedule 1, paragraph 3.
1964 c. 86.	Malta Independence Act 1964.	In Schedule 2, paragraph 3.
1964 c. 93.	Gambia Independence Act 1964.	In Schedule 2, paragraph 3.
1966 c. 14.	Guyana Independence Act 1966.	In Schedule 2, paragraph 3.
1966 c. 23.	Botswana Independence Act 1966.	In the Schedule, paragraph 3.
1966 c. 24.	Lesotho Independence Act 1966.	In the Schedule, paragraph 3.
1966 c. 29.	Singapore Act 1966.	In the Schedule, paragraph 8.
1966 c. 37.	Barbados Independence Act 1966.	In Schedule 2, paragraph 3.
1968 c. 8.	Mauritius Independence Act 1968.	In Schedule 2, paragraph 3.
1968 c. 48.	International Organisations Act 1968.	In section 4, the word "foreign" in the first place where it occurs.
1968 c. 56.	Swaziland Independence Act 1968.	In the Schedule, paragraph 3.
1970 c. 22.	Tonga Act 1970.	In the Schedule, paragraph 2.

SCH.

Chapter or number	Short title	Extent of repeal
1970 c. 50. 1971 c. 64.	Fiji Independence Act 1970. Diplomatic & other Privileges Act 1971.	In Schedule 2, paragraph 2. Section 2.
1973 c. 27.	Bahamas Independence Act 1973.	In Schedule 2, paragraph 1.
1973 c. 49.	Bangladesh Act 1973.	In the Schedule, paragraph 4.
S.I. 1973/2156.	Grenada Modification of Enactments Order 1973.	In the Schedule, paragraph 2.
1976 c. 19. S.I. 1977/821.	Seychelles Act 1976. Diplomatic Immunities (Conferences) (Papua New Guinea and Western Samoa) Order 1977.	In the Schedule, paragraph 1. The whole Order.
1978 c. 15.	Solomon Islands Act 1978.	In the Schedule, paragraph 1.
1978 c. 20.	Tuvalu Act 1978.	In Schedule 2, paragraph 1.
S.I. 1978/1030.	Dominica Modification of Enactments Order 1978.	In the Schedule, paragraph 1.
S.I. 1978/1899.	St. Lucia Modification of Enactments Order 1978.	In the Schedule, paragraph 1.
1979 c. 27.	Kiribati Act 1979.	In the Schedule, paragraph 1.
S.I. 1979/917.	St. Vincent Modification of Enactments Order 1979.	In the Schedule, paragraph 1.
1980 c. 16. S.I. 1980/701.	New Hebrides Act 1980. Zimbabwe (Independence and Membership of the Commonwealth) (Consequential Provisions) Order 1980.	In Schedule 1, paragraph 1. In the Schedule, paragraph 2(1).